

24VECV02362 24VECV02362

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C08%2F25%2F2026

Source SHA-256: 285e806814693b7d925029efa61c6cc96adf6323e69e83957002d95579449b21

Case Number: 24VECV02362 Hearing Date: August 25, 2026 Dept: T

24VECV02362 ANHARI V ALAMIRAD

TENTATIVE RULINGS 8/25

MOTION TO COMPEL DEPOSITION OF PLAINTIFF

Defendant filed a Motion to Compel deposition of the plaintiff on 7/6/2026. The court is unable to locate the proof of service for this motion. Therefore, the court will continue the motion so that it may be timely served. Alternatively, plaintiff agrees to appear for deposition on September 21, September 29, or October 9, 2026 which the court can order if the parties stipulate. The court will discuss this at the hearing.

MOTION TO COMPEL FURTHER RESPONSES TO RFAS SET TWO

The motion was not filed but apparently was served. However, even in the absence of the motion, the court can see what is being requested and it is denied. First, it is denied because of the extraordinary disorganization of the requests. Only 35 are allowed unless there are special circumstances which are set forth in a declaration for additional discovery. Here, the sets are misnumbered. Also, defendant has served hundreds of RFAs. The court agrees with the plaintiff that this set is abusive discovery without substantial justification and does not require any further responses.

MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Defendant's motion to compel further responses to Special Interrogatories: Grant in part as indicated below.

The initial responses were inadequate and it was not until after the motion was filed that supplemental responses were served. Indeed, the objections are an abuse of discovery and were subject to sanctions. The fact that supplemental responses were served does not make the initial responses proper. PLAINTIFF'S COUNSEL SHOULD KNOW BETTER.

However, the supplemental responses are still not adequate. These questions are simple and proper. The answers are "subject to objections," none of which apply. Therefore, all objections are overruled since none involve attorney client privilege, attorney work product, or any other kind of privilege. The "answers" do not answer the simple questions asked. Many answers are overly broad and vague. It is clear that defendant is seeking specific information, all of which is or should be known to plaintiff. Plaintiff is required to make a reasonable inquiry to get this information, including reviewing her phone, notes, calendars. Her recollection can also be refreshed by the exhibits 1-20 which were served by defendant. Plaintiff is

warned that if she does not properly answer these interrogatories, she may be limited in her testimony at trial. If she is going to be able to answer these questions at trial, she better answer them now. Nothing will change between now and then.

Finally, plaintiff's verification is improper. Here is the statutory language required by CCP section 446 for verifications: "In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true."

Here is plaintiff's verification. "The matters stated in the foregoing RESPONSES TO DEFENDANT FARZAN ALAMIRAD'S SPECIAL INTERROGATORIES – SET ONE S[ERRONEOUSLY TITLED SET TWO] is based on my own personal knowledge and/or has been supplied by my attorneys or other agents and/or compiled from available documents and is therefore provided as required by law. The information contained in the foregoing document is true, except as to the matters which were provided by my attorneys or other agents or compiled from available documents, including all contentions and opinions, and, as to those matters, I am informed and believe that they are true."

Plaintiff's verification is stricken and she is required to use the statutory language.

Plaintiff is ordered to provide properly verified court ordered answers without objections within 20 days as follows (the response must indicate in the caption they are court ordered):

Special Rog #1: Plaintiff has failed to state the date, the location, and the purpose.

Special Rog #2: Why is "dinner" in quotation marks. It appears that there may be some obfuscation here. It should be answered as asked.

Special Rog#3: Each occasion is not specified.

Special Rog#4: This response is inadequate. What did plaintiff do to try to obtain this information? Look at a calendar? Phone?

Special Rog #5: If plaintiff remembers event attended by co-workers, who were they?

Special Rog#6, 8, 9: This response is meaningless because she did not name any events.

Special Rog#7: Same as no. 5

Special Rog#12, 21, 22, : The "answer" does not answer the specific questions.

Special Rog #13, 14,15, 16, 17, 18, 19, 20, 23, 24: Answer without objection.

FINALLY, DEFENDANT ALAMIRAD IS REMINDED THAT FOR EVERY DOCUMENT FILED WITH THE COURT REGARDING A MOTION, THE DOCUMENT MUST SPECIFY TO WHICH MOTION IT APPLIES IN THE CAPTION OF THE MOTION.